



WHERE WE ARE IS OUR PROPERTY

THE ST. CATHERINE'S MILLING CASE (1888)

IN CONTEXT

FOCUS

The land rights of Indigenous Peoples

BEFORE

1763 King George III's royal proclamation states that Indigenous Peoples have title to their land; the Crown must handle treaties that cede land.

1867 The British North America Act makes the federal government responsible for the interests of Indigenous Peoples and their lands in Canada.

AFTER

1982 The Constitution Act of Canada recognizes existing Indigenous or treaty rights.

1992 In Australia, the Mabo Decision rejects the concept of *terra nullius* ("empty land" that is not legally owned before it is colonized) and grants land title to the people of Murray Island.

2010 Canada signs the United Nations Declaration on the Rights of Indigenous Peoples.

The St. Catherine's Milling case was a landmark in the law relating to the land rights of Indigenous Peoples following colonization. In 1888, the St. Catherine's Milling and Lumber Company wanted to cut timber around Wabigoon Lake in Ontario, Canada, and obtained a license to do so from the federal government. The Ontario government, however, claimed that it owned the land where the timber stood, and the company should therefore have obtained the license from it. The case rested on whether a treaty between the federal government and the Indigenous Peoples living on the land had transferred ownership of that land. This could only have happened if the Indigenous Peoples had owned the land in the first place.

The case was heard by four courts, eventually reaching the Privy Council in London, England. Each court held that the land had not been owned by the Indigenous Peoples, but for different reasons. The trial judge used what is now acknowledged to be racist language,

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... there is no Indian title at law or in equity. The claim of the Indians is simply moral and no more.

Oliver Mowat

Premier of Ontario (1872–1896)

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saying that “as heathens and barbarians,” the Indigenous Peoples had no right of ownership. The Privy Council was more restrained, saying that Indigenous Peoples' rights were only to use and enjoy land, not to own it. No Indigenous People had the chance to give evidence in the case. Canadian law now recognizes that Indigenous Peoples have (and had) rights very similar to ownership rights over land, but the fight is far from over. ■

See also: Magna Carta 66–71 ■ The Treaty of Tordesillas 86–87 ■ The Peace of Westphalia 94–95 ■ The United Nations and International Court of Justice 212–219